

**SUPERIOR COURT, STATE OF CALIFORNIA
COUNTY OF SANTA CLARA**

**Department 13
Honorable Daniel T. Nishigaya**

J. Long, Courtroom Clerk
191 North First Street, San Jose, CA 95113
Telephone: 408-882-2240

DATE: August 22, 2025

TIME: 9:00 A.M.

**TO CONTEST A TENTATIVE RULING, YOU MUST CALL (408) 808-6856
BEFORE 4:00 P.M. ON THE DAY PRIOR TO THE HEARING.**

**You must also inform all other sides to the issue before 4:00 P.M. the day prior to the hearing
that you plan to contest the ruling. The Court will not hear argument, and the tentative ruling will be
adopted if these notifications are not made. (Cal. Rule of Court 3.1308(a)(1); Civil Local Rule 8.E.)**

LINE #	CASE #	CASE TITLE	RULING
LINE 6	25CV460162	LEAH FILO et al vs FORD MOTOR COMPANY et al	Motion to Compel Arbitration and Stay Proceedings Plaintiff has not opposed this motion. (See <i>Laguna Auto Body v. Farmers Is. Exchange</i> (1991) 231 Cal.App.3d 481, 489 [“[A]ppellants had ample opportunity to present their arguments and excuses to the trial court. Instead, they failed to file opposition to the motion ... leading the trial court and us to presume they had no meritorious arguments.”].) Upon good cause shown, the motion is GRANTED. Plaintiff’s action against Beltray Inc., DBA All Star Ford shall be compelled to arbitration and the action as to Defendant Beltray Inc., DBA All Star Ford, <i>only</i> shall be stayed pending the outcome of arbitration. The action as to Beltray Inc., DBA All Star Ford, <i>only</i> shall be set for an Arbitration Status Review Hearing on Friday, May 29, 2026 at 10:30 a.m. in Department 13.
LINE 7	23CV417549	KEVIN LU vs QUINCY WINSHIP et al	Hearing: Pitchess Motion OFF CALENDAR. This civil action has been dismissed and all future court dates have been vacated. Thus, there is no basis for Plaintiff’s motion.

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LINE #	CASE #	CASE TITLE	RULING
LINE 8	23CV417549	KEVIN LU vs QUINCY WINSHIP et al	“P.C. 1054” Motion OFF CALENDAR. This civil action has been dismissed and all future court dates have been vacated. Thus, there is no basis for Plaintiff’s motion. In addition, criminal discovery motions under Penal Code § 1054 are not within the jurisdiction of the civil court.
LINE 9	21CV388190	First Point Oakmead, LLC vs MiaSole Hi-Tech Corp.	Motion for Attorney’s Fees & Costs Ctrl Click (or scroll down) on Line 9 for tentative ruling.
LINE 10	25CV456065	Hung Le vs Khung Tran	Motion for Trial Preference & Further Case Management Conference Ctrl Click (or scroll down) on Line 10 for tentative ruling.

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